

Promoting and Protecting Rights Policy

VERSION 1.0	EFFECTIVE	NEXT REVIEW	OWNER Principal / Key Management Personnel	APPROVED BY Governing body
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PURPOSE AT A GLANCE

This policy explains how [] makes sure every participant's legal and human rights are understood and built into everyday practice — with support that is safe, ethical and free from discrimination, abuse, neglect and exploitation, responsive communication, and support to engage with family, friends and community as the participant directs.

1. Purpose and scope

This policy supports [] to apply the Person-Centred Supports NDIS Practice Standard. It applies to all services and supports delivered by [] and to all employees, contractors and volunteers (**Workers**), who must take full responsibility for understanding and following it. It should be read alongside the related documents in the final section and the corresponding procedures in the Policy Register.

2. Policy aims

[] is committed to ensuring that:

- each participant accesses supports that promote, uphold and respect their legal and human rights, and is enabled to exercise informed choice and control; and
- the provision of support promotes, upholds and respects individual rights to freedom of expression, self-determination and decision-making.

3. Rights

In providing its supports and services, [] is committed to ensuring every participant, including people with disability, has the right to: respect for their human worth and dignity; services and supports that are safe, ethical and free from discrimination and from financial, sexual, physical or emotional abuse, neglect and exploitation; freedom of expression, self-determination and decision-making; realising their potential for development; full participation in society; information and support to understand and exercise their legal and human rights; privacy of their personal and sensitive information; and to raise concerns and be supported to formalise complaints.

4. Preventing and responding to breaches of rights

[] actively prevents abuse, harm, neglect and violence and any breach of human or legal rights; takes all allegations seriously and responds quickly and sensitively under the Incident Management and Reporting Policy; and provides access to support when an allegation or breach occurs. Where a participant's rights are being breached by others, [] supports the participant proactively and sensitively, to

the limits of its expertise and resources, and directs the participant (and, if appropriate, their support network) to other avenues of support, including legal and advocacy services.

5. The participant as decision-maker

[] supports each participant to engage with their family, friends and chosen community as the participant directs, and recognises that the participant is the decision-maker with the final say in planning and decisions about their services and supports (unless a guardian has been legally appointed).

6. Communication and workers

Communication about the provision of support is responsive to each participant's needs and provided in the language, mode of communication and terms they are most likely to understand, with interpreters and advocacy services arranged where required. [] employs skilled workers and has systems to support them to understand, promote, protect and incorporate legal and human rights into everyday practice; all workers receive this policy at induction and are trained to apply it and to identify and report breaches of a participant's rights by any party.

7. Definitions

[]

[], ABN [].

Client

A client of [], including an NDIS participant.

Key Management Personnel (KMP)

[], and other key management personnel involved in [] from time to time.

Principal

[].

Legislation Register

The register of legislation, regulations, rules and guidelines maintained by [].

Policy Register

The register of policies of [].

Worker

A permanent, fixed-term or casual member of staff, a contractor or a volunteer engaged by [], including the Principal.

Human rights

The recognition and respect of people's dignity; a set of moral and legal guidelines that promote and protect our values, identity and an adequate standard of living; the basic standards by which inequality and fairness are measured; and the rights associated with the Universal Declaration of Human Rights.

8. Related documents and approval

Related documents: Client Information Booklet · Client Information Booklet (Easy Read) · Choice, Advocacy and Control Policy · Privacy and Dignity Policy · Preventing and Responding to Violence, Abuse, Neglect,

Legislation and rules: as set out in the Legislation Register. If any part of this policy is inconsistent with applicable law, it is taken to be amended only to the extent needed to comply.

Approved by	
Approval date	
Next scheduled review	
Version	1.0

SAMPLE · NOT LICENSED